

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Purchased:

-----X
AISHAH PHILLIPS, SEAN MERCHANT, JOEL
SPENCE,

Plaintiffs designate
BRONX County as the place of trial

Plaintiffs,

The basis of the venue is where the
tort arose.

-against-

SUMMONS

THE CITY OF NEW YORK, JEANPIERRE PEDLY,
P.O. OF THE 47 PCT., SHIELD #19984, TAX ID#
958724, KEVIN KENNY, LT. OF THE 47 PCT.,
OTHER NEW YORK CITY POLICE OFFICERS ON
ARREST NUMBERS B17627320, B17627318 AND
B17627322 N/H/A JOHN/JANE DOE I-V, AS IT
PERTAINS TO THE INCIDENT THAT AROSE ON
MAY 26, 2017 AND NO OTHER DATE,

Plaintiffs reside at

AISHAH PHILLIPS
1 Maple Street
White Plains, NY 10603

SEAN MERCHANT
940 E. 220 Street, PH
Bronx, NY 10469

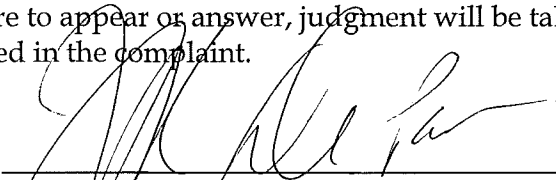
Defendants.

-----X
JOEL SPENCE
21 81 Barnes Avenue
Bronx, NY 10462

TO THE ABOVE NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED, to answer the complaint in this
action and to serve a copy of your answer, or if the complaint is not served with this
summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after
the service of this summons, exclusive of the day of service (or within 30 days after the
service is complete if this summons is not personally delivered to you within the State of
New York); and in case of your failure to appear or answer, judgment will be taken against
you by default for the relief demanded in the complaint.

Dated: Bayside, New York
July 25, 2018


BY: JOHN R. DEPAOLA, ESQ.
JOHN R. DEPAOLA & ASSOCIATES, PLLC.
Attorneys for Plaintiffs
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400 / (718) 281-4000

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

**JEANPIERRE PEDLY, P.O. OF THE 47 PCT.
SHIELD #19984, TAX ID# 958724**

4111 Laconia Avenue
Bronx, New York, 10466

KEVIN KENNY, LT. OF THE 47 PCT.

4111 Laconia Avenue
Bronx, New York, 10466

SUPREME COURT OF THE STATE OF NEW YORK Index No.:
COUNTY OF BRONX

-----X
AISHAH PHILLIPS, SEAN MERCHANT, JOEL
SPENCE,

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, JEANPIERRE PEDLY,
P.O. OF THE 47 PCT., SHIELD #19984, TAX ID#
958724, KEVIN KENNY, LT. OF THE 47 PCT.,
OTHER NEW YORK CITY POLICE OFFICERS ON
ARREST NUMBERS B17627320, B17627318 AND
B17627322 N/H/A JOHN/JANE DOE I-V, AS IT
PERTAINS TO THE INCIDENT THAT AROSE ON
MAY 26, 2017 AND NO OTHER DATE,

Defendants.

-----X

Plaintiffs, AISHAH PHILLIPS, SEAN MERCHANT AND JOEL SPENCE, by their
attorneys, JOHN R. DEPAOLA & ASSOCIATES, PLLC., respectfully alleges as follows:

1. At all times mentioned, Plaintiff AISHAH PHILLIPS was a resident of
Westchester County, State of New York and Plaintiffs SEAN MERCHANT
AND JOEL SPENCE, were residents of Bronx County, City and State of New
York.
2. At all times mentioned, Defendant CITY OF NEW YORK, was and is a
municipal corporation duly organized and existing by virtue of the laws of
the State of New York.
3. On or about the 14th day of August, 2017 and within ninety (90) days after
some of the claims herein arose, the Plaintiffs each served their respective
Notice of Claims in writing sworn to on their behalf upon the Defendant,
CITY OF NEW YORK, by delivering a copy of each Notice of Claim in

duplicate to the officer designated to receive such process personally, which each Notice of Claim advised the Defendant, **CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. Each of the Plaintiffs have complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants, **JEANPIERRE PEDLY, P.O. OF THE 47 PCT., SHIELD #19984, TAX ID# 958724, KEVIN KENNY, LT. OF THE 47 PCT., OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17627320, B17627318 AND B17627322 N/H/A JOHN/JANE DOE I-V**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

AS AND FOR A FIRST CAUSE OF ACTION

7. On or about May 26, 2017, at approximately 1:49 A.M. in the vicinity of 4355 Ely Avenue, County of Bronx, State of New York the Defendants jointly and

severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff, **AISHAH PHILLIPS**, in an excessive manner about her person, causing her physical pain and injury, and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff, **AISHAH PHILLIPS**, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about May 26, 2017, at approximately 1:49 A.M. in the vicinity of 4355 Ely Avenue, County of Bronx, State of New York the Defendants, **JEANPIERRE PEDLY, P.O. OF THE 47 PCT., SHIELD #19984, TAX ID# 958724, KEVIN KENNY, LT. OF THE 47 PCT., OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17627320, B17627318 AND B17627322 N/H/A JOHN/JANE DOE I-V**, jointly and severally did place Plaintiff, **AISHAH PHILLIPS**, in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed Plaintiff, **AISHAH PHILLIPS**, in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff, **AISHAH PHILLIPS**, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about May 26, 2017, at approximately 1:49 A.M. in the vicinity of 4355 Ely Avenue, County of Bronx, State of New York the Defendants, **JEANPIERRE PEDLY, P.O. OF THE 47 PCT., SHIELD #19984, TAX ID# 958724, KEVIN KENNY, LT. OF THE 47 PCT., OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17627320, B17627318 AND B17627322 N/H/A JOHN/JANE DOE I-V**, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, **AISHAH PHILLIPS**, restrained her and her liberty and then took her into custody to a police station in the County of Bronx and there charged her with the crimes on Arrest No. B17627320. The Plaintiff was thereafter held in custody over the course of approximately two (2) days, or approximately twenty-two (22) hours until her release, when Assistant District Attorney Bevin-Casey C. Gugliucciello of the Bronx District Attorney's Office declined to prosecute this matter. The Defendants intentionally confined the Plaintiff, **AISHAH PHILLIPS**, without her consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of her confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff, **AISHAH PHILLIPS**, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and

effect as though set forth at length herein.

13. On or about May 26, 2017, at approximately 1:49 A.M. in the vicinity of 4355 Ely Avenue, County of Bronx, State of New York the Defendants, **JEANPIERRE PEDLY, P.O. OF THE 47 PCT., SHIELD #19984, TAX ID# 958724, KEVIN KENNY, LT. OF THE 47 PCT., OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17627320, B17627318 AND B17627322 N/H/A JOHN/JANE DOE I-V**, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, **AISHAH PHILLIPS**, restrained her and her liberty, and then took her into custody and causing her to be incarcerated as a detainee in the City of New York's Correctional Facility and/or police jail. The Plaintiff was thereafter held in custody over the course of approximately two (2) days, or approximately twenty-two (22) hours before her release. The Defendants intentionally confined the Plaintiff without her consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff **AISHAH PHILLIPS** was conscious of her confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

14. Plaintiff, **AISHAH PHILLIPS**, incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.

15. Defendants, JEANPIERRE PEDLY, P.O. OF THE 47 PCT., SHIELD #19984, TAX ID# 958724, KEVIN KENNY, LT. OF THE 47 PCT., OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17627320, B17627318 AND B17627322 N/H/A JOHN/JANE DOE I-V, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
16. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
17. Plaintiff, AISHAH PHILLIPS, is and at all times relevant herein, a citizen of the United States and a resident of Westchester County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
18. The Defendant, CITY OF NEW YORK, is a municipality duly incorporated under the laws of the State of New York.
19. On or about May 26, 2017, the Defendants, JEANPIERRE PEDLY, P.O. OF THE 47 PCT., SHIELD #19984, TAX ID# 958724, KEVIN KENNY, LT. OF THE 47 PCT., OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17627320, B17627318 AND B17627322 N/H/A JOHN/JANE DOE I-V, armed police, while effectuating the seizure of the Plaintiff, AISHAH PHILLIPS, did search, seize, assault and commit batteries, against the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely

arrested, unlawfully imprisoned without the Defendants possessing probable cause to do so. Plaintiff was only visiting said apartment and was not in actual, constructive or statutory possession of any contraband or controlled substance. Upon entering the premise in question, **KEVIN KENNY, LT. OF THE 47 PCT.** arrested Plaintiff even though he had no probable cause to believe Plaintiff had done anything illegal. Based on the incorrect statements made by **JEANPIERRE PEDLY, P.O. OF THE 47 PCT., SHIELD #19984, TAX ID# 958724, KEVIN KENNY, LT. OF THE 47 PCT.,** and/or otherwise along with those named as **JOHN/JANE DOE I-V**, Plaintiff was falsely arrested without probable cause. Plaintiff had multiple assault and batteries committed to her person including but not limited to being placed so tight that Plaintiff's wrists turned red.

20. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. Freedom from assault to his/her person;
 - b. Freedom from battery to his/her person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from the use of excessive force during the arrest process;
 - f. Freedom from unlawful imprisonment;
 - g. Freedom from loss of his/her liberty.
 - h. Freedom from strip search and/or cavity inspection.
21. The Defendants subjected the Plaintiff, **AISHAH PHILLIPS**, to such deprivations, either in a malicious or reckless disregard of the Plaintiff's

rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.

22. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. She was forced to endure pain and suffering, all to her detriment.

AS AND FOR A SIXTH CAUSE OF ACTION

23. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "22" with full force and effect as though set forth at length herein.
24. Defendant, **CITY OF NEW YORK**, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
25. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff, **AISHAH PHILLIPS**, here, where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

26. THE CITY OF NEW YORK is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before individuals such as the Plaintiffs herein can be arrested.
 2. Excessive force cannot be used against an individual or individuals who do(es) not physically resist arrest.
 3. An individual, or individuals, who sustain(s) physical injury at the hands of the police during the arrest process should receive prompt medical attention.
27. The foregoing acts, omissions and systemic failures are customs and policies of the CITY OF NEW YORK which caused the police officers to falsely arrest, seize illegally and search Plaintiff, commit assault/batteries to her person, and/or denied her prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN SEVENTH CAUSE OF ACTION

28. Plaintiff, AISHAH PHILLIPS, repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "27" as it set forth at length herein.
29. Defendant, CITY OF NEW YORK, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably

prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY OF NEW YORK and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

AS AND FOR A EIGHTH CAUSE OF ACTION

30. Plaintiff, SEAN MERCHANT, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "29" with full force and effect as though set forth at length herein.
31. On or about May 26, 2017, at approximately 1:49 A.M. in the vicinity of 4355 Ely Avenue, County of Bronx, State of New York the Defendants, JEANPIERRE PEDLY, P.O. OF THE 47 PCT., SHIELD #19984, TAX ID# 958724, KEVIN KENNY, LT. OF THE 47 PCT., OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17627320, B17627318 AND B17627322 N/H/A JOHN/JANE DOE I-V, jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff, SEAN MERCHANT, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A NINTH CAUSE OF ACTION

32. Plaintiff, SEAN MERCHANT, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "31" with full force and

effect as though set forth at length herein.

33. On or about May 26, 2017, at approximately 1:49 A.M. in the vicinity of 4355 Ely Avenue, County of Bronx, State of New York the Defendants, **JEANPIERRE PEDLY, P.O. OF THE 47 PCT., SHIELD #19984, TAX ID# 958724, KEVIN KENNY, LT. OF THE 47 PCT., OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17627320, B17627318 AND B17627322 N/H/A JOHN/JANE DOE I-V**, jointly and severally did place Plaintiff, **SEAN MERCHANT**, in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed Plaintiff **SEAN MERCHANT** in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A TENTH CAUSE OF ACTION

34. Plaintiff, **SEAN MERCHANT**, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "33" with full force and effect as though set forth at length herein.
35. On or about May 26, 2017, at approximately 1:49 A.M. in the vicinity of 4355 Ely Avenue, County of Bronx, State of New York the Defendants, **JEANPIERRE PEDLY, P.O. OF THE 47 PCT., SHIELD #19984, TAX ID# 958724, KEVIN KENNY, LT. OF THE 47 PCT., OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17627320, B17627318 AND B17627322 N/H/A JOHN/JANE DOE I-V**, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully

and unlawfully arrested the Plaintiff, **SEAN MERCHANT**, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Arrest No. B17627318. The Plaintiff was thereafter held in custody over the course of approximately two (2) days, or approximately twenty-two (22) hours, until his release, when Assistant District Attorney Bevin-Casey C. Gugliucciello of the Bronx District Attorney's Office declined to prosecute this matter. The Defendants intentionally confined the Plaintiff, **SEAN MERCHANT**, without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A ELEVENTH CAUSE OF ACTION

36. Plaintiff, **SEAN MERCHANT**, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "35" with full force and effect as though set forth at length herein.
37. On or about May 26, 2017, at approximately 1:49 A.M. in the vicinity of 4355 Ely Avenue, County of Bronx, State of New York the Defendants, **JEANPIERRE PEDLY, P.O. OF THE 47 PCT., SHIELD #19984, TAX ID# 958724, KEVIN KENNY, LT. OF THE 47 PCT., OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17627320, B17627318 AND B17627322 N/H/A JOHN/JANE DOE I-V**, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, **SEAN MERCHANT**, restrained him and his liberty, and then took him into custody and causing him to be incarcerated as a detainee in the City of New York's Correctional

Facility and/or police jail. The Plaintiff was thereafter held in custody over the course of approximately two (2) days, or approximately twenty-two (22) hours before release. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff SEAN MERCHANT was conscious of his confinement.

AS AND FOR A TWELFTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

38. Plaintiff, SEAN MERCHANT, incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "37" with full force and effect as though set forth at length herein.
39. Defendants, JEANPIERRE PEDLY, P.O. OF THE 47 PCT., SHIELD #19984, TAX ID# 958724, KEVIN KENNY, LT. OF THE 47 PCT., OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17627320, B17627318 AND B17627322 N/H/A JOHN/JANE DOE I-V, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
40. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
41. Plaintiff, SEAN MERCHANT, is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York

and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

42. The Defendant, **CITY OF NEW YORK**, is a municipality duly incorporated under the laws of the State of New York.

43 On or about May 26, 2017, the Defendants, armed police, while effectuating the seizure of the Plaintiff, **SEAN MERCHANT**, did search, seize, assault and commit batteries, and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned without the Defendants possessing probable cause to do so. Plaintiff was only visiting said apartment and was not in actual, constructive or statutory possession of any contraband or controlled substance. Upon entering the premise in question, **KEVIN KENNY, LT. OF THE 47 PCT.** arrested Plaintiff even though he had no probable cause to believe Plaintiff had done anything illegal. Based on the incorrect statements made by **JEANPIERRE PEDLY, P.O. OF THE 47 PCT., SHIELD #19984, TAX ID# 958724, KEVIN KENNY, LT. OF THE 47 PCT.,** and/or otherwise along with those named as **JOHN/JANE DOE I-V**, Plaintiff was falsely arrested without probable cause. Plaintiff had multiple assault and batteries committed to his person including but not limited to being placed so tight that Plaintiff's wrists turned red.

44. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his/her person;
 - b. Freedom from battery to his/her person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from the use of excessive force during the arrest process;
 - f. Freedom from unlawful imprisonment;
 - g. Freedom from loss of his/her liberty.
 - h. Freedom from strip search and/or cavity inspection.
45. The Defendants subjected the Plaintiff, **SEAN MERCHANT**, to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.
46. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A THIRTEENTH CAUSE OF ACTION

47. Plaintiff, **SEAN MERCHANT**, incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "46" with full force and effect as though set forth at length herein.
48. Defendant, **CITY OF NEW YORK**, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers

should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

49. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest, a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff, **SEAN MERCHANT**, here, where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
50. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before individuals such as the Plaintiff herein can be arrested.
 2. Excessive force cannot be used against an individual or individuals who do(es) not physically resist arrest.
 3. An individual, or individuals, who sustain(s) physical injury at the hands of the police during the arrest process should receive prompt medical attention.
51. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search Plaintiff **SEAN MERCHANT**, commit assault/batteries to his person, and/or denied him

prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN FOURTEENTH CAUSE OF ACTION

52. Plaintiff, **SEAN MERCHANT**, repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "51" as it set forth at length herein.
53. Defendant, **CITY OF NEW YORK**, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

AS AND FOR A FIFTEENTH CAUSE OF ACTION

54. Plaintiff, **JOEL SPENCE**, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "53" with full force and effect as though set forth at length herein.
55. On or about May 26, 2017, at approximately 1:49 A.M. in the vicinity of 4355 Ely Avenue, County of Bronx, State of New York the Defendants, **JEANPIERRE PEDLY, P.O. OF THE 47 PCT., SHIELD #19984, TAX ID# 958724, KEVIN KENNY, LT. OF THE 47 PCT., OTHER NEW YORK CITY**

POLICE OFFICERS ON ARREST NUMBERS B17627320, B17627318 AND B17627322 N/H/A JOHN/JANE DOE I-V, jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff, JOEL SPENCE, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SIXTEENTH CAUSE OF ACTION

56. Plaintiff, JOEL SPENCE, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "55" with full force and effect as though set forth at length herein.
57. On or about May 26, 2017, at approximately 1:49 A.M. in the vicinity of 4355 Ely Avenue, County of Bronx, State of New York the Defendants, JEANPIERRE PEDLY, P.O. OF THE 47 PCT., SHIELD #19984, TAX ID# 958724, KEVIN KENNY, LT. OF THE 47 PCT., OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17627320, B17627318 AND B17627322 N/H/A JOHN/JANE DOE I-V, jointly and severally did place Plaintiff, JOEL SPENCE, in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION

58. Plaintiff, JOEL SPENCE, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "57" with full force and effect as though set forth at length herein.
59. On or about May 26, 2017, at approximately 1:49 A.M. in the vicinity of 4355 Ely Avenue, County of Bronx, State of New York the Defendants, JEANPIERRE PEDLY, P.O. OF THE 47 PCT., SHIELD #19984, TAX ID# 958724, KEVIN KENNY, LT. OF THE 47 PCT., OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17627320, B17627318 AND B17627322 N/H/A JOHN/JANE DOE I-V, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, JOEL SPENCE, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Arrest No. B17627322. The Plaintiff was thereafter held in custody over the course of approximately two (2) days, or approximately twenty-two (22) hours, until his release, when Assistant District Attorney Bevin-Casey C. Gugliucciello of the Bronx District Attorney's Office declined to prosecute this matter. The Defendants intentionally confined the Plaintiff, JOEL SPENCE, without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A EIGHTEENTH CAUSE OF ACTION

60. Plaintiff, JOEL SPENCE, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "59" with full force and

effect as though set forth at length herein.

61. On or about May 26, 2017, at approximately 1:49 A.M. in the vicinity of 4355 Ely Avenue, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, JOEL SPENCE, restrained him and his liberty, and then took him into custody and causing him to be incarcerated as a detainee in the City of New York's Correctional Facility and/or police jail. The Plaintiff was thereafter held in custody over the course of approximately two (2) days, or approximately twenty-two (22) hours before release. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff JOEL SPENCE was conscious of his confinement.

AS AND FOR A NINETEENTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

62. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "61" with full force and effect as though set forth at length herein.
63. Defendants, JEANPIERRE PEDLY, P.O. OF THE 47 PCT., SHIELD #19984, TAX ID# 958724, KEVIN KENNY, LT. OF THE 47 PCT., OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17627320, B17627318 AND B17627322 N/H/A JOHN/JANE DOE I-V, were at all times

relevant, duly appointed and acting officers of the City of New York Police Department.

64. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
65. Plaintiff, **JOEL SPENCE**, is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
66. The Defendant, **CITY OF NEW YORK**, is a municipality duly incorporated under the laws of the State of New York.
67. On or about May 26, 2017, the Defendants, armed police, while effectuating the seizure of the Plaintiff, **JOEL SPENCE**, did search, seize, assault and commit batteries, and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned without the Defendants possessing probable cause to do so. Plaintiff was only visiting said apartment and was not in actual, constructive or statutory possession of any contraband or controlled substance. Upon entering the premise in question, **KEVIN KENNY, LT. OF THE 47 PCT.** arrested Plaintiff even though he had no probable cause to believe Plaintiff had done anything illegal. Based on the incorrect statements made by **JEANPIERRE PEDLY, P.O. OF THE 47 PCT., SHIELD #19984, TAX ID# 958724, KEVIN KENNY,**

LT. OF THE 47 PCT., and/or otherwise along with those named as JOHN/JANE DOE I-V, Plaintiff was falsely arrested without probable cause. Plaintiff had multiple assault and batteries committed to his person including but not limited to being placed so tight that Plaintiff's wrists turned red.

68. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. Freedom from assault to his/her person;
 - b. Freedom from battery to his/her person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from the use of excessive force during the arrest process;
 - f. Freedom from unlawful imprisonment;
 - g. Freedom from loss of his/her liberty.
 - h. Freedom from strip search and/or cavity inspection.
69. The Defendants subjected the Plaintiff, JOEL SPENCE, to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
70. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A TWENTIETH CAUSE OF ACTION

71. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "70" with full force and effect as though set forth at length herein.
72. Defendant, **CITY OF NEW YORK**, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
73. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest, a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff, **JOEL SPENCE**, here, where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
74. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before individuals such as the Plaintiffs herein can be arrested.

2. Excessive force cannot be used against an individual or individuals who do(es) not physically resist arrest.
 3. An individual, or individuals, who sustain(s) physical injury at the hands of the police during the arrest process should receive prompt medical attention.
75. The foregoing acts, omissions and systemic failures are customs and policies of the CITY OF NEW YORK which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search Plaintiff, commit assault/batteries to his person, and/or denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN TWENTY-FIRST CAUSE OF ACTION

76. Plaintiff, JOEL SPENCE, repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "75" as it set forth at length herein.
77. Defendant, CITY OF NEW YORK, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY OF NEW YORK and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

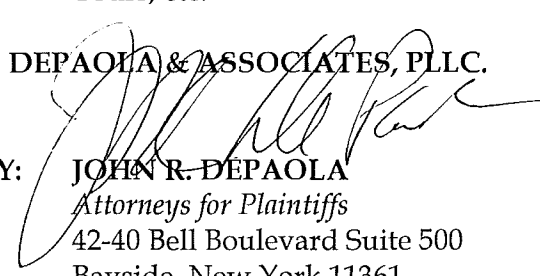
WHEREFORE, each of the Plaintiffs demand judgment against the Defendants, together with the costs and disbursements of their actions in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages, and such other and further relief as may be deemed just and proper.

Dated: Bayside, New York
July 25, 2018

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES, PLLC.

BY:


JOHN R. DEPAOLA

Attorneys for Plaintiffs

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400 / (718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased: _____

-----X
AISHAH PHILLIPS, SEAN MERCHANT, JOEL
SPENCE,

VERIFICATION

Plaintiffs,

-against-

THE CITY OF NEW YORK, JEANPIERRE PEDLY,
P.O. OF THE 47 PCT., SHIELD #19984, TAX ID#
958724, KEVIN KENNY, LT. OF THE 47 PCT.,
OTHER NEW YORK CITY POLICE OFFICERS ON
ARREST NUMBERS B17627320, B17627318 AND
B17627322 N/H/A JOHN/JANE DOE I-V, AS IT
PERTAINS TO THE INCIDENT THAT AROSE ON
MAY 26, 2017 AND NO OTHER DATE,

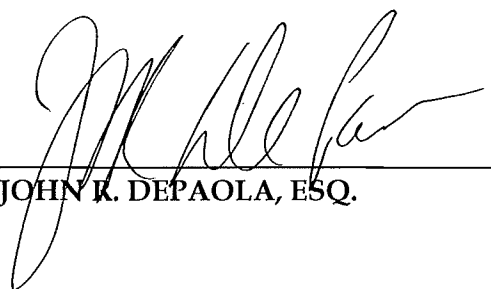
Defendants.

-----X

I, JOHN R. DEPAOLA, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES, PLLC., the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs is because Plaintiffs reside outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
July 25, 2018



JOHN R. DEPAOLA, ESQ.

Index No. :

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

AISHAH PHILLIPS, SEAN MERCHANT, JOEL SPENCE,

Plaintiffs,

-against-

THE CITY OF NEW YORK, JEANPIERRE PEDLY, P.O. OF THE 47 PCT., SHIELD #19984, TAX ID# 958724, KEVIN KENNY, LT. OF THE 47 PCT., OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17627320, B17627318 AND B17627322 N/H/A JOHN/JANE DOE I-V, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON MAY 26, 2017 AND NO OTHER DATE,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated _____

Attorney(s) for